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Case Number: 26STCV06227 Hearing Date: July 13, 2026 Dept: 32

MARIBEL MANZO,

Plaintiff,

v.

LOS ANGELES UNIFIED SCHOOL DISTRICT, et
al.,

Defendants.

Case No.: 26STCV06227

Hearing Date: July 13, 2026

[TENTATIVE]

order RE:

defendants' demurrer to complaint

BACKGROUND

On February 25, 2026, Plaintiff

Maribel Manzo (a minor, through her guardian ad litem Rafael Manzo) filed this action against Defendants Los Angeles Unified School District (the District) and Brenda A. Cortez. The dispute stems from injuries Plaintiff sustained as a result of a slip and fall at school.

On May 4, 2026, Defendants filed the instant demurrer to the complaint. Plaintiff filed an opposition on May 19, 2026. Defendants filed a reply on July 6, 2026.

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “California law emphasizes ultimate fact pleading (with some exceptions, notably for fraud and related torts) ‘in ordinary and concise language,’ and the test for adequacy is not absolute but ‘whether the pleading as a whole apprises the adversary of the factual basis of the claim.’” (Lim v. The.TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690.)

MEET AND CONFER

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.) The Court finds that Defendants have satisfied the meet and confer requirement. (See Spaur Decl.)

DISCUSSION

I.

The Undisputed Facts Show that Plaintiff Exceeded the Statute of Limitations

Under the Tort Claims Act, certain claims must be presented to a public entity before a plaintiff may file a civil action for damages. (Gov. Code, § 945.4.) A plaintiff must present his claim no later

than six months after the cause of action accrues. (Id., § 911.2(a).) If the public entity provides a written notice of rejection, the lawsuit must be filed “not later than six months after the date such notice is personally delivered or deposited in the mail.” (Id., § 945.6(a)(1).) “This six-month deadline ‘is mandatory and must be strictly complied with.’” (Sofranek v. County of Merced (2007) 146 Cal.App.4th 1238, 1246, quoting Julian v. City of San Diego (1986) 183 Cal. App. 3d 169, 176.)

Here, Plaintiff’s claim accrued on April 11, 2025, the date of the incident. Plaintiff timely filed a government tort claim on August 4, 2025, within six months of accrual. The District rejected the claim on August 19, 2025. Plaintiff filed this action on February 25, 2026, more than six months after the rejection. Therefore, the lawsuit is untimely.

II.

Plaintiff’s Minor Status Does Not Excuse the Untimeliness

As discussed in the Court’s concurrent ruling on Plaintiff’s motion for leave to file a late claim, the relief provisions of Government Code section 946.6 are inapplicable because Plaintiff timely presented her government claim. Section 946.6 does not provide relief for the failure to timely file a lawsuit after rejection of a claim. Additionally, Plaintiff failed to satisfy the requirements for relief under section 946.6 because she did not present an application for late claim within one year of accrual.

Plaintiff’s

minor status does not save the complaint. Contrary to Plaintiff’s contention, neither section 911.6(b)(2) nor section 946.6(c)(2) excuses the untimely lawsuit. Section 911.6(b) governs the conditions under which a public entity must grant an application for late claim. But again, the late claim procedure has no bearing in this case because Plaintiff timely presented her claim to the District. Section 911.6(b) does not address, much less toll, the six-month deadline for filing suit after a claim is rejected. Similarly, section 946.6(c) concerns the conditions under which a court must grant relief to file a late claim. Again, the late claim procedure is inapplicable, and Plaintiff failed to satisfy the requirements of section 946.6.

III.

Equitable Tolling Does Not Apply

Lastly, equitable tolling does not save the untimely lawsuit. It is true that “[t]he doctrine of equitable tolling may also apply to the limitation periods imposed by the claims statutes.” (J.M. v. Huntington Beach Union High School Dist. (2017) 2 Cal.5th 648, 657.) However, equitable tolling only applies in limited circumstances, such as when a plaintiff, “possessing several legal remedies he, reasonably and in good faith, pursues one designed to lessen the extent of his injuries or damage.” (Ibid., quoting Addison v. State of California (1978) 21 Cal.3d 313, 317.) Thus, for example, a limitations period may be tolled while a plaintiff pursues a second action in federal court. (Ibid.)

But that is not what occurred here.

Instead, Plaintiff “simply failed to comply with the claims statutes, missing an easily ascertainable deadline that has been in place for over 50 years.” (J.M., supra, 2 Cal.5th at p. 658.) Under these circumstances, equitable tolling gives way to “the important public interest or policy expressed by the [Government] Claims Act limitations statute.” (Ibid.)

CONCLUSION

Defendants’ demurrer is SUSTAINED
without leave to amend.

MARIBEL MANZO,

Plaintiff,

v.

LOS ANGELES UNIFIED SCHOOL DISTRICT, et
al.,

Defendants.

Case No.: 26STCV06227

Hearing Date: July 13, 2026

[TENTATIVE]

order RE:

plaintiff's motion to accept late filing
of government claim

BACKGROUND

On February 25, 2026, Plaintiff Maribel Manzo (a minor, through her guardian ad litem Rafael Manzo) filed this action against Defendants Los Angeles Unified School District (the District) and Brenda A. Cortez. The dispute stems from injuries Plaintiff sustained as a result of a slip and fall at school.

On June 22, 2026, Plaintiff filed the instant motion for permission to file a late claim. The District filed an opposition on June 30, 2026. Plaintiff filed a reply on June 30, 2026.

LEGAL STANDARD

Under the Tort Claims Act, certain claims must be presented to a public entity before a plaintiff may file a civil action for damages. (Gov. Code, § 945.4.) A plaintiff must present his claim no later than six months after the cause of action accrues. (Id., § 911.2(a).) If a claim is rejected as untimely, a plaintiff may file with the government entity an application for leave to file a late claim. (Id., § 911.4.) If this application is rejected, a plaintiff has six months to petition the court for relief from the requirements of Section 945.4. (Id., § 946.6.)

A petition under Section 946.6 must show each of the following: (1) that application was made to the board under Section 911.4 and was denied or deemed denied; (2) the reason for failure to present the claim within the time limit specified in Section 911.2; and (3) the information required by Section 910. (Gov. Code, § 946.6(b).) The court shall grant the requested relief if it finds that “[t]he failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4.” (Id., § 946.6(c)(1).)

DISCUSSION

I.

The Relief Provision is Inapplicable

As a threshold matter, the late claim procedure is inapplicable to the circumstances. Plaintiff's claim accrued on April 11, 2025, the date of the incident. It is undisputed that Plaintiff timely filed a government tort claim on August 4, 2025, within six months of accrual. Thus, there is no need for Plaintiff to file a late claim.

The real issue is that Plaintiff failed to file this lawsuit within six months of the District's denial of the claim. (See Gov. Code, § 945.6(a)(1).) The District rejected the claim on August 19, 2025. Plaintiff filed this action on February 25, 2026, more than six months after the rejection. But this cannot be resolved by presenting a late claim. Section 946.6 addresses the plaintiff's failure to timely submit a claim to the public entity. It does not provide relief for the failure to timely file a lawsuit after the public entity rejects the claim.

II.

Plaintiff Did Not Satisfy the Requirements for Relief

In any case, Plaintiff failed to satisfy the requirements for obtaining relief under section 946.6. Before granting relief, the court must find that "the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4." (Gov. Code, § 946.6(c).) Section 911.4 requires that the late claim application must be made "within a reasonable time not to exceed one year after the accrual of the cause of action." (Id., § 911.4(b).) "In computing the one-year period . . . [t]he time during which the person who sustained the alleged injury, damage, or loss as a minor shall be counted." (Id., § 911.4(c)(1).)

Here, Plaintiff mailed her application for late filing to the District on April 30, 2026, more than one year after the claim accrued on April 11, 2025. Plaintiff's status as a minor does not toll the one-year deadline. Contrary to Plaintiff's contention, neither section 911.6(b)(2) nor section 946.6(c)(2) tolls the one-year deadline under section 911.4. *J.M. v. Huntington Beach Union High School Dist.* (2017) 2 Cal.5th 648, 652, also cited by Plaintiff, further confirms that a minor is entitled to

relief “so long as the application is made within the year after the cause of action accrued.” Because Plaintiff did not file her application for late claim within one year after accrual, she is not entitled to relief under section 946.6.

CONCLUSION

Plaintiff’s motion for relief to file late claim is DENIED.